KUDAKWASHE NICOLAS CHIKUHUHU
and
PARADZAI CHIKUHUHU
versus
MASIMBA CHAZA

HIGH COURT OF ZIMBABWE
TAKUVA AND CHIKOWERO JJ
HARARE; 12 March & 18 May 2026

Civil Appeal

G S Unzemoyo, for the appellants
N Kavhumbura, for the respondent

CHIKOWERO J:

Introduction

[1] The Magistrates Court sitting at Norton erred in fact in finding that the appellants had freely and voluntarily signed the Acknowledgment of Debt dated 11 March 2025.

[2] The appeal is allowed.

The Background

[3] The appellants are siblings. They reside in Norton. The first appellant, who is the younger, runs a car washing business close to his brother's pharmacy in Norton.

[4] The respondent also operates a pharmacy in Norton.

[5] In or about September 2024 one Innocent Chibwe stole some drugs from respondent's pharmacy. He sold them to the first appellant at a price of US$55.

[6] On or about 10 March 2025 a police officer investigating the theft appeared at the second appellant's pharmacy looking for the first appellant.

[7] The first appellant appeared at Norton Police Station where he was instructed by the respondent to follow the latter. Thinking that the second respondent was a member of the police team investigating the theft of the drugs by Chibwe, the first appellant drove to

some premises which turned out to be Kavhumbura Law Chambers. That law firm's principal is the respondent's legal practitioner of record.

[8] At Kavhumbura Law Chambers both the respondent and his legal practitioner put pressure on the first appellant to pay the sum of US$2000 to the respondent failing which the legal practitioner would make sure the first appellant would be arrested, prosecuted and incarcerated for receiving stolen property knowing or suspecting that such property was stolen. What was referred to as the stolen property were the drugs that the first appellant purchased from Chibwe. Having taken the view that the first appellant had delivered the drugs to his brother's pharmacy, the respondent and his legal practitioner also threatened to cause the arrest of the second appellant for the crimes of receiving stolen property knowing or suspecting the same to be stolen and purchasing medicines from an unauthorized person and, to cap it all, to cause the regulators to close the second appellant's pharmacy, to de-register that pharmacy as well as to cancel the second appellant's certificate to practise as a pharmacist. Shaken to the core, the first appellant pointed out that he did not know that Chibwe had stolen the drugs. He also stated that he did not have the sum of US$2 000 whereupon the respondent and his legal practitioner demanded that the appellants were to present themselves at Kavhumbura Law Chambers at 8:00am the following morning. The first appellant's ordeal at those chambers spanned from 5:30pm to about 9:00pm.

[9] Come the morrow the appellants trooped into the chambers a few minutes after 8:00am. The respondent was not present. His legal practitioner repeated the threats. The result was that the appellants signed an Acknowledgement of Debt in favour of the respondent. It reads:

> "ACKNOWLEDGMENT OF DEBT
> EXECUTED BY KUDAKWASHE NICHOLAS CHIKUHUHU
> I.D 63-1425440-Z-13
> Born: 29 April 1991
>
> PARADZAI CHIKUHUHU
> I.D 63-1118574-Z-13
> Born: 28 July 1980
> Address: G5 Flamingo Flats, Norton
> Tel: 263 773 995693
>
> [Hereinafter referred to as "the Debtor"]

IN FAVOUR OF MASIMBA CHAZA

I.D: 59-054767 N18
Address: 30261 Twinlakes, Norton
(Hereinafter referred to as the creditor)

WHEREAS KUDAKWASHE NICHOLAS CHIKUHUHU and Paradzai Chikuhuhu (the Debtor) are indebted to Masimba Chaza (the Creditor) the sum amount of Four Thousand United States Dollars (US$4 000.00) being money owed to the creditor by the debtor.

AND WHEREAS the debtor failed to pay the debt and negotiated for time to pay AND WHEREAS the parties negotiated land agreed to resolve the matter amicably out of court process. AND WHEREAS the parties negotiated and agreed that the Debtor shall pay the Creditor $1 000 United States Dollars for negotiation and drafting of the acknowledgment of debt.

NOW, THEREFORE:

The undersigned KUDAKWASHE NICHOLAS CHIKUHUHU and Paradzai Chikuhuhu do hereby acknowledge that we are truly and lawfully indebted to Masimba Chaza in the sum of Four Thousand United States Dollars (US$4 000) and we promise to pay it in following terms and conditions:

1. We shall pay the whole amount of $4 000 United States Dollars as follows:
   - 1.1 $2 000 on or before the 12th of March 2025.
   - 1.2 $2 000 on or before the 20th of March 2025.
   - 1.3 $1 000 on or before the 31st of March 2025.

2. If we default or commit any breach of this Acknowledgement of Debt, then in such event, the Creditor shall have the option at its discretion to institute legal action against us at the Magistrate Courts at Norton.

3. No extension of time waiver or other indulgence granted to me by the said Creditor shall in any way prejudice them against enforcement of their rights herein for breach of contract.

4. We renounce the benefits of the following legal exceptions:

   - 4.1 Non *numeratae pecunie* [that the debt was never paid].
   - 4.2 Non cause *de bit* [that there is no cause for the debt]
   - 4.3 *Error Calculi* [that there is an error of calculation and there is a need for revision of accounts]
   - 4.4 *De dobud vei pluribur reis debenti* [that there are two debtors, and the other one is the one to have been sued]
   - 4.5 *Beneticum ordinis seu excussions* [that there is a principal debtor who ought to have been sued and executed against first]
   - 4.6 *Beneficum* divisions [that there are two sureties and liability must be divided amongst them pro rata]

5. We further acknowledge that in the event of any further legal action being taken against me for the recovery of any sum due in terms hereof or for the performance of any act we [Debtor] shall be liable for all legal costs on an attorney-client scale.

6. We further acknowledge that we have granted the Magistrates Court jurisdiction to award the Creditor costs at an attorney-client scale where the Creditor is successful in any legal action against me on this Acknowledgement of Debt.

7. We further acknowledge that we are liable to a 10% collection commission on the debt should we default.

8. We hereby choose *domicilium citandi et executandi* at the address given above.

THUS, EXECUTED AT NORTON ON THIS 11TH DAY OF MARCH 2025 in the presence of the following witnesses:

WITNESSES:

1.	(signed)	(signed) KUDAKWASHE E. NICHOLAS CHIKUHUHU
2.	(signed)	(signed) PARADZAI CHIKUHUHU

[10] The appellants admitted signing the Acknowledgement of Debt but averred that they did so under duress from the respondent and his legal practitioner. They maintained that stance at the trial. The respondents, as plaintiff a *quo*, testified to no duress having been brought to bear on the appellants.

[11] The lower court preferred the evidence of the respondent. It found that the appellants had freely and voluntarily signed the Acknowledgement of Debt and that their failure to call the two witnesses who signed the Acknowledgement of Debt was fatal to their case. Consequently, the lower court granted judgment for the respondent ordering the appellants to pay the sum of US$5 000 as the principal amount, US$500 as collections commission, interest and costs.

The law on appellate interference with factual findings made by a lower court

[12] In *PF ZAPU* v *Minister of Justice, Legal and Parliamentary Affairs* (2) 1985 (1) ZLR 305(S) the Court stated the law at 326 E-G:

> "As a general rule of law, as regards irrationality, an appellate court will not interfere with a decision of a trial court based purely on a finding of fact unless it is satisfied that having regard to the evidence placed before the trial court, the finding complained of is so outrageous in its defiance of logic or of accepted moral standards that no sensible person who had applied his mind to the question to be decided could have arrived at such a conclusion."

[13] The position has been reiterated in several other decisions in this jurisdiction over the years. For instance, in *Hama* v *National Railways of Zimbabwe* 1996(1) ZLR 664(S) the Court said at 670B:

> "…there can be a misdirection as to the evidence in the case, for an appellant to avail himself of a misdirection as to the evidence, the nature and circumstances of the case must be such that it is reasonably probable that the Tribunal would not have determined as it did had there been no misdirection. In other words, that the determination was irrational."

[14] The law on appellate interference with factual findings made by a lower court is clear. We do not need to labour the point.

The law on duress as a ground for resisting enforcement of an acknowledgement of debt.

[15] In *International Export Trading Company Zimbabwe (Pvt) Ltd* v *Mazambani* HH 195/17 DUBE J (as she then was) referred to a number of sources of law on this aspect. They include R.H Christie's Business Law in Zimbabwe 2011 ed at 82-83, *Arend and Anor* v *Astra Furnishers (Pty) Ltd* 1974 (I) SA 298 (C) at 305, *Bpoe Bank Berperk* v *Val Zyl* 2002(5) SA 165C and *Muza* v *Agricultural Bank of Zimbabwe Ltd* SC 70/03. At p5 HER LADYSHIP then said:

> "In a nutshell, a litigant wishing to rely on duress…as a ground for resisting enforcement of an AOD must do more than just allege that he was forced to sign the AOD. He must convince the Court that the pressure applied upon him to coerce him to sign was so extreme or severe so as to negative voluntariness and induced him to sign the document without his free will… Further, that he would ordinarily not agree to the signing. He must show that he protested and took steps to avoid the forced action…. The threats alleged must be proved to be the motivation for the signing and the threat must be of some imminent or an inevitable evil. The defendant's fear must be reasonable."

Did the appellants establish that the acknowledgement of debt was vitiated by duress?

[16] They did. Having regard to the evidence placed before it, the lower court's finding to the contrary was irrational.

[17] The evidence establishing that the appellants signed the acknowledgement of debt under duress was simply overwhelming.

[18] The first appellant was detained at Kavhumbura Law Chambers on 10 March 2025 from 5:30pm to about 9:00pm. That period spanned over three hours. In that hostile atmosphere the respondent and his legal practitioner threatened the first appellant in the manner already referred to elsewhere in this judgment.

[19] Still shaken by the threats, the appellants promptly appeared at the same chambers the following morning. Although he had not received the drugs in question the second appellant could not risk being arrested and prosecuted for the crimes of receiving stolen property knowing or suspecting the same to be stolen and receiving medicines from an unauthorized person because he had a previous conviction by the regulator for breaching the regulations governing the practice of pharmacy in this country. He feared, reasonably, that his pharmacy would be de-registered and his practising certificate cancelled should the respondent and Mr Kavhumbura carry out their threats to report him to the Pharmacists Council of Zimbabwe and the Medicines Control Authority of Zimbabwe.

[20] It is common cause that there is no cause for the appellant's purported indebtedness to the respondent in the huge sum of US$5 000. The parties had no business or other relationship with each other. They did not know each other. The appellants did not owe the respondent a dime. In these circumstances, only duress explains why they ended up signing to acknowledge a debt they did not owe – in favour of a total stranger.

[21] The purported indebtedness included an exorbitant legal fee component in the sum of US$ 1000. That amount was to be paid to the respondent's own legal practitioner. It was to be paid by the appellants. It was a fee for drawing up the one and a half page acknowledgement of debt, a document drafted and signed in the absence of the respondent. That document was pregnant with falsehoods. Not only did the appellants owe the respondent nothing, there was neither negotiation nor settlement out of court to talk about. Ordinarily, a legal practitioner charges his own client fees for services rendered. Here,

the appellants were forced to sign a document condemning them to pay the respondent's lawyer. The lawyer was an active participant in issuing threats to the appellants.

[22] What brought the parties together was that Chibwe stole drugs worth US$55 from the respondent's pharmacy and sold the same to the first appellant. The drugs were not recovered. Taking advantage of seeming to recover the loss incurred by the respondent, this litigant and his legal practitioner apparently seized the opportunity to extort money from the appellants. The respondent failed to explain the huge leap from US$55 to US$5000. He failed to explain how the second respondent was roped in for purposes of making the payment. These gaps, so it seems to us, are filled in by the duress exerted on the appellants by the respondent and his legal practitioner.

[23] The burdensome nature of the acknowledgment of debt is explicable on the basis of duress. Otherwise, why would the appellants agree to sign a document requiring them to pay a total stranger the whooping sum of US$5000, US$500 as collection commission, interest and punitive costs in the event the matter ended up in court?

[24] The lower court was in error in faulting the appellants for not producing the persons who signed the acknowledgment of debt as witnesses. The appellant's testimony was clear in this regard. Two women unknown to the appellants were asked to sign the acknowledgment of debt, as witnesses, at Kavhumbura Law Chambers. Observing the murky circumstances surrounding the appellants' own signature of that document, the appellants testified that the two women refused to append their signatures, thereto, remarking that to do otherwise "would give us problems in future." This testimony was not challenged. It explains why the appellants produced an acknowledgment of debt duly signed by them but without witnesses' signatures affixed thereto. They testified that they were shocked to discover at trial that the respondent had in his possession a copy of the very same acknowledgement of debt, but apparently signed by two witnesses. We have seen the acknowledgment of debt which the respondent produced. The names of the persons who witnessed it are not reflected on the exhibit. What passes as signatures of the purported witnesses are lines scribbled thereon. In these circumstances, since the appellants had presented evidence tending to show that they signed the acknowledgment of debt under duress, it behoved the respondent to call the

persons who witnessed the appellants signing the acknowledgment of debt, if at all such persons existed, to rebut the appellant's evidence that they signed the document under duress.

[25] Finally on the evidence of duress, the appellants immediately instructed their legal practitioners that they had signed the acknowledgment of debt under duress. They received legal advice to the effect that what the respondent and his legal practitioners had done amounted to committing the crime of extortion. The appellants promptly filed a police report. The respondent and his legal practitioner were arrested by members of the Zimbabwe Republic Police at Norton. As at the time of the trial which eventually led to this appeal, warned and cautioned statements had been recorded from the respondent and his legal practitioner. They were yet to appear before the criminal court for trial.

Legal ethics

[26] We cannot help but say this. Mr Kavhumbura should not have represented the respondent both at trial and before us. A clear case of conflict of interest on his part looms large on the record.

Costs

[27] The appellants would have been entitled to costs on appeal had they prayed for same in the notice of appeal. Although they have succeeded on appeal we cannot grant them the costs of the appeal because they have not asked for such relief.

[28] But we will grant them the costs of the trial. They have prayed for that relief.

Order

[29] In the result, IT IS ORDERED THAT:

1. The appeal is allowed with no order as to costs.
2. The judgment of the court a quo is set aside. It is substituted with the following:

   "1. The plaintiff's claim is dismissed.

2. The plaintiff shall pay the defendants' costs of suit."

CHIKOWERO J: ……

TAKUVA J: ……I agree

Musara, Mupawaenda and Mawere, Appellants' Legal Practitioners
Kavhumbura Law Chambers, Respondent's Legal Practitioners